

EVIDENCE TO SUPPORT VARIATION OF A SUPPORT ORDER

Form version: March 1, 2021

Form K

1. I ask the Court to change (vary) the support order(s) or written agreement(s) between the Respondent and me. I have listed below all order(s) or written agreement(s) and the dates and locations where they were made. (An application to change an order or agreement must be supported by documents to prove the change, and the current circumstances.)

Court File Number	Order Date (Month/Day/Year)	Court location or city

2. In the order(s) or agreement(s), I am the:

- ☐ person required to pay support (the payor), or
☐ person receiving support (the recipient)

3. I ask the court to:

- ☐ **change** the amount of support to be paid for:

- ☐ a child or children
☐ the recipient

Effective: _____ (must be the same date as listed on Form A.2 or Form A.4)

- ☐ **end** support to be paid for:

- ☐ a child or children
☐ the recipient

Effective: _____ (must be the same date as listed on Form A.2 or Form A.4)

4. **Applicant's change in circumstances**

There has been a change in my circumstances since the date the order or written agreement was made. Write details of the change, the date of the change, whether temporary or permanent.

☐ Additional page(s) attached

5. Child's change in circumstances

There has been a change in the circumstances of a child(ren) named in the order or written agreement since the date the order or written agreement was made. Specify each child's name and date of birth. Write details of the change, the date of the change, whether temporary or permanent.

☐ Additional page(s) attached

6. Respondent's change in circumstances

There has been a change in the Respondent's circumstances since the date the order or written agreement was made. Write details of the change, the date of the change, whether temporary or permanent.

☐ Additional page(s) attached

7. Applicant/Payor's application to reduce or cancel arrears or change support

- ☐ As of _____ (date), the amount of unpaid support (arrears) is \$_____.
A copy of a statement from the maintenance/support enforcement program is attached
- ☐ I ask to change the amount of support as of _____ (date). The following
information supports my request.

I have made the following efforts (in the past) to seek a change in support or arrears: (For example, have there been any written requests to the other party or prior court applications?)

☐ Additional page(s) attached

If a retroactive change is requested, explain why an application was not made earlier.

☐ Additional page(s) attached

- ☐ If the court orders a retroactive change in the amount of support, I ask that the support arrears be changed to show the change in the order.
- ☐ I have made the following efforts to pay the arrears:

☐ Additional page(s) attached

I will be able to pay any arrears the court orders as follows: (Write the monthly amount available to pay arrears, or other sources of income/assets which could be used to pay arrears.)

☐ Additional page(s) attached

I am not able to pay the arrears or the full amount of arrears because:

☐ Additional page(s) attached

8. Applicant/Recipient's application to change support order

- ☐ As of _____ (date), the amount of unpaid support (arrears) is \$ _____.
A copy of a statement from the maintenance/support enforcement program is attached.
- ☐ I ask to change the amount of support as of _____ (date). The following information supports my request.
- ☐ If the court orders a retroactive change in the amount of support, I ask that the support arrears be changed to show the change in the order.

I have made the following efforts (in the past) to seek a change in support or arrears: (For example, have there been any written requests to the other party or prior court applications?)

☐ Additional page(s) attached

This document is attached to and forms part of the evidence in support variation application.

(Signature of Applicant)